



NC: 2025:KHC-D:16881
WP No. 100654 of 2019
C/W WP No. 100655 of 2019
WP No. 100656 of 2019
WP No. 100657 of 2019
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**IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH
DATED THIS THE 1ST DAY OF DECEMBER, 2025**

**BEFORE
THE HON'BLE MR. JUSTICE M.NAGAPRASANNA
WRIT PETITION NO. 100654 OF 2019 (S-RES)**

**C/W
WRIT PETITION NO. 100655 OF 2019
WRIT PETITION NO. 100656 OF 2019
WRIT PETITION NO. 100657 OF 2019
WRIT PETITION NO. 100658 OF 2019**

**IN W.P.NO.100654/2019
BETWEEN:**

IRANNA S/O. MALAKAJI MUNAVALLI
AGE: 35 YEARS,
OCC: PRINCIPAL,
MORARJI DESAI RESIDENTIAL
SCHOOL (BC 208), VAKKUNDA,
TQ: BAILHONGAL,
DIST: BELAGAVI.

...PETITIONER

(BY SRI. K. S. PATIL, ADVOCATE)

AND:

1. THE PRINCIPAL SECRETARY
GOVERNMENT OF KARNATAKA,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
2. DEPARTMENT OF SOCIAL WELFARE,
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
3. THE KARNATNAKA
RESIDENTIAL EDUCATIONAL
INSTITUTIONS SOCIETY,
REPRESENTED BY EXECUTIVE DIRECTOR,





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NO.8, B-1, 6TH AND 7TH FLOOR,
CUNNINGHAM ROAD,
BENGALURU-560052.

...RESPONDENTS

(BY SMT. GIRIJA S. HIEMATH, HCGP FOR R1;
R2-SERVED AND UNRPRESENTED;
SRI. SUNIL S. DESAI, ADVOCATE FOR R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227
OF THE CONSTITUTION OF INDIA PRAYING TO:

- A) ISSUE WRIT IN THE NATURE OF MANDAMUS DIRECTING THE
RESPONDENT NO 1 TO 3 TO CONSIDER THE REPRESENTATION
DATED 2/5/2018 PRODUCED AT VIDE ANNEXURE E & E2 AND
GRANT THE BENEFIT OF OLD PENSION SCHEME TO THE
PETITIONER IN ENDS OF JUSTICE.
- B) GRANT ANY OTHER RELIEFS AND DEEMED FIT AND PROPER IN
THE CIRCUMSTANCES OF THE CASE, IN THE INTEREST OF
JUSTICE.

IN W.P.NO.100655/2019
BETWEEN:

KUMAR HANUMANTHAPPA JOGAR
AGE: 36 YEARS,
OCC: PRINCIPAL,
KITURRY RANI CHANNAMMA
RESIDENTIAL SCHOOL,
AKKI ALUR, HANAGAL,
TQ: HANAGAL,
DIST: HAVERI.

...PETITIONER

(BY SRI. K. S. PATIL, ADVOCATE)

AND:

1. THE PRINCIPAL SECRETARY
GOVERNMENT OF KARNATAKA,
DEPARTMENT OF EDUCATION,
VIDHAN SOUDA,
AMBEDKAR VEEDHI,
BENGALURU-01.



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2. THE STATE OF KARNATAKA,
DEPARTMENT OF SOCIAL WELFARE,
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
3. THE KARNATNAKA
RESIDENTIAL EDUCATIONAL
INSTITUTIONS SOCIETY,
REPRESENTED BY EXECUTIVE DIRECTOR,
NO.8, B-1,
6TH AND 7TH FLOOR,
CUNNINGHAM ROAD,
BENGALURU-560052.

...RESPONDENTS

(BY SMT. GIRIJA S. HIREMATH, HCGP FOR R1; R2 SERVED;
SRI. SUNIL S. DESAI, ADVOCATE FOR R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE WRIT IN THE NATURE OF MANDAMUS DIRECTING THE RESPONDENT NO. 1 TO 3 TO CONSIDER THE REPRESENTATION DATED 04.05.2018 PRODUCED AT VIDE ANNEXURE E AND E1 AND GRANT THE BENEFIT OLD PENSION SCHEME TO THE PETITIONER IN ENDS OF JUSTICE.

IN W.P.NO.100656/2019
BETWEEN:

RANGANATH.K.
AGE: 46 YEARS,
OCC: PRINCIPAL,
KITTUR RANI CHANNAMMA
RESIDENTIAL SCHOOL, HIREKERUR,
TQ: HIREKERUR, DIST: HAVERI.

...PETITIONER

(BY SRI. K. S. PATIL, ADVOCATE)



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AND:

1. THE PRINCIPAL SECRETARY
GOVERNMENT OF KARNATAKA,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
2. DEPARTMENT OF SOCIAL WELFARE
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
3. THE KARNATNAKA
RESIDENTIAL EDUCATIONAL
INSTITUTIONS SOCIETY,
REPRESENTED BY EXECUTIVE DIRECTOR,
NO.8, B-1, 6TH AND 7TH FLOOR,
CUNNINGHAM ROAD,
BENGALURU-560052.

...RESPONDENTS

(BY SMT. GIRIJA S. HIEMATH, HCGP FOR R1;
R2 AND R3 ARE SERVED)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING ISSUE WRIT IN THE NATURE OF MANDAMUS DIRECTING THE RESPONDENT NO 1 TO 3 TO CONSIDER THE REPRESENTATION DATED 8/5/2018 PRODUCED AT VIDE ANNEXURE E AND GRANT THE BENEFIT OF OLD PENSION SCHEME TO THE PETITIONER IN ENDS OF JUSTICE.

IN W.P.NO.100657/2019

BETWEEN:

VITTAL S/O. HANAMAPPA PUJER,
AGE: 40 YEARS, OCC: PRINCIPAL,
KITTUR RANI CHANNAMMA
RESIDENTIAL SCHOOL (SC),
SALAHALLI, TQ: RAMADURGA,
DIST: BELAGAVI.

...PETITIONER

(BY SRI. K. S. PATIL, ADVOCATE)



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AND:

1. THE PRINCIPAL SECRETARY
GOVERNMENT OF KARNATAKA,
DEPARTMENT OF EDUCATION,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
2. THE STATE OF KARNATAKA
DEPARTMENT OF SOCIAL WELFARE,
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
3. THE KARNATNAKA
RESIDENTIAL EDUCATIONAL
INSTITUTIONS SOCIETY,
REPRESENTED BY EXECUTIVE DIRECTOR,
NO.8, B-1, 6TH AND 7TH FLOOR,
CUNNINGHAM ROAD,
BENGALURU-560052.

...RESPONDENTS

(BY SMT. GIRIJA S. HIREMATH, HCGP FOR R1; R2-SERVED;
SRI. SUNIL S. DESAI, ADVOCATE FOR R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE WRIT IN THE NATURE OF MANDAMUS DIRECTING THE RESPONDENT NO 1 TO 3 TO CONSIDER THE REPRESENTATION DATED 2/5/2018, PRODUCED AT VIDE ANNEXURE E & E1 AND GRANT THE BENEFIT OF OLD PENSION SCHEME TO THE PETITIONER IN ENDS OF JUSTICE.

IN W.P.NO.100658/2019
BETWEEN:

MANJUNATH
S/O SHIVALINGAPPA MARITAMMANAVAR
AGE: 40 YEARS, OCC: PRINCIPAL,
MORAJI DESAI RESIDENTIAL SCHOOL



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(294 BCL) YALAVATTI (BOMMANAHALLI
TQ. HANAGAL, DIST. HAVERI.

...PETITIONER

(BY SRI. K. S. PATIL, ADVOCATE)

AND:

1. THE PRINCIPAL SECRETARY
GOVERNMENT OF KARNATAKA,
DEPARTMENT OF EDUCATION,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
2. THE STATE OF KARNATAKA
DEPARTMENT OF SOCIAL WELFARE,
REPRESENTED BY ITS
PRINCIPAL SECRETARY,
VIDHANA SOUDHA,
AMBEDKAR VEEDHI,
BENGLAURU-01.
3. THE KARNATNAKA RESIDENTIAL EDUCATIONAL
INSTITUTIONS SOCIETY,
REPRESENTED BY EXECUTIVE DIRECTOR,
NO.8, B-1, 6TH AND 7TH FLOOR,
CUNNINGHAM ROAD,
BENGALURU-560052.

...RESPONDENTS

(BY SMT. GIRIJA S. HIEMATH, HCGP FOR R1; R2-SERVED;
SRI. SUNIL S. DESAI, ADVOCATE FOR R3)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO ISSUE WRIT IN THE NATURE OF MANDAMUS DIRECTING THE RESPONDENT NO 1 TO 3 TO CONSIDER THE REPRESENTATION DATED 2/5/2018, PRODUCED AT VIDE ANNEXURE E & E1 AND GRANT THE BENEFIT OF OLD PENSION SCHEME TO THE PETITIONER IN ENDS OF JUSTICE.

THESE WRIT PETITIONS, COMING ON FOR PRELIMINARY HEARING THIS DAY, ORDER WAS MADE THEREIN AS UNDER:



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ORAL ORDER
(PER: THE HON'BLE MR. JUSTICE M.NAGAPRASANNA)

1. The petitioners in all these cases project a common grievance, which is consideration of their representations.

2. The petitioners were appointed in the year 2005 as Primary School Assistant Teacher and have joined the services. Prior to the appointment of these petitioners, the petitioners were working in different institutions and were appointed pursuant to an examination conducted by the State. The respondents then issue a Notification directing all Government Departments to continue the old pension scheme in respect of new appointments coming from other Government Departments. The same benefit is not given to the petitioners notwithstanding the fact that they did come from other Government Departments through proper channel. In that light, the petitioners have submitted representations to the respondents to get the benefit of old pension scheme in terms of the Government Order so passed directing that all the petitioners who have come from other Government Departments would be entitled to the old pension scheme. In the light of the non-consideration of the



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representations, the petitioners are now at the doors of this Court in the subject petitions.

3. The learned HCGP would submit that if reasonable time is granted, the representations of these petitioners would merit consideration and appropriate orders would be passed thereon.

4. In the light of the said submission, I deem it appropriate to dispose these petitions with a direction to the respondent-State to consider the representations of these petitioners and pass necessary orders thereon in accordance with law at any rate within 12 weeks from the date of receipt of the copy of the order, if not already considered and passed as on date.

Ordered accordingly.

Sd/-
(M.NAGAPRASANNA)
JUDGE

kmv
CT-ANB